

Trio walk out of rally trial

By PEARL LEE

"IF you're not on our side, get lost!"

So said lawyer P. Uthayakumar to his co-counsel, Rajpal Singh, which led to the latter walking out of a packed Shah Alam Sessions Court yesterday.

Both men were among 18 lawyers representing 26 people who faced three sets of charges for their involvement in an illegal gathering in front of the Sri Subramaniam temple in Batu Caves on Nov 25 between 1am and 8am.

"Yang Arif, I've been told to leave the court. I would like to discharge myself from the case," said Rajpal.

The emotional standoff followed a heated exchange between Uthayakumar, lawyer M. Manoharan and judge Azimah Omar.

Uthayakumar, however, insisted that the charges against the 26 were based on malicious prosec-

ution while M. Manoharan said the case was a racial issue and that's why the defence counsel were being emotional.

"I was shot with tear gas during the *Bersih* rally," said Manoharan.

At this juncture, Rajpal was 'given the boot' after he had attempted to calm down Uthayakumar.

Rajpal, however, wasn't the only one to discharge himself from the case as shortly after, lawyers Suraj Singh and S. Jaya Murugan followed suit.

The prosecution team was headed by Attorney-General Tan Sri Abdul Gani Patail, head of prosecution from the Attorney-General's Chambers Datuk Yusof Zainal Abiden, deputy public prosecutors Awang Armadajaya Awang Mahmud, Shazreen Mohd Hatta and Lee Keng Fatt.

The 26 accused faced two charges under Section 149 as members of an illegal assembly who had displayed criminal force to intimidate a police officer, Dadi

Abdul Rani, who was carrying out his duties, and during the assembly, one or more persons had intentionally, knowing if their actions caused death, they would be committing an offence of murder under Section 302 of the Penal Code.

The offence carries a 10-year jail term and fine under Section 307 of the Penal Code.

The accused were also charged with causing damage to public property leading to the damage of seven vehicles and the temple's two gates.

The second offence carries a jail term of five years and a fine in line with Section 440 of the Penal Code.

Ten of the 26 also faced an additional charge of being part of an illegal assembly under Section 27(5) of the Police Act 1967 and an alternative charge under Section 143 of the Penal Code for being members of an illegal assembly who had intimidated a po-



ACCUSED: Some of the 26 charged yesterday

lice officer carrying out his duties.

The offence carries a maximum fine of RM10,000 and a jail term of no more than a year.

All the accused, aged between 18 and 45, claimed trial.

The hearing began at 4.20pm and ended at 5.45pm.

Manoharan said that he hoped the judge would not feel intimidated as the case was being prosecuted by the Attorney-General himself.

The defence led by counsel G.K. Ganesan, earlier asked the court to postpone the hearing to today

after saying that their clients were not in the right state of mind to plead.

He alleged that his clients had no food or drink for the past 14 hours since their arrest at 2am on Tuesday.

Azimah adjourned the hearing to today for the defence counsel to argue their case and as to whether the charges against the 26 ought to be discharged under Section 173(g) of the Criminal Procedure Code and whether bail should be granted to the accused persons.